Judge Weakens Vaccine Mandate

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A federal judge weakened New York state's mandate for medical workers to be vaccinated against Covid-19, a win for nurses and other staff who have lost their jobs elsewhere in the country over their refusal to get the shots.

U.S. District Judge David Hurd on Tuesday issued an order to temporarily prevent New York's health department from rejecting employer-approved religious exemptions to a vaccine mandate that takes effect Sept. 27.

The order was in response to a petition from 17 medical personnel who said New York's mandate violated their religious beliefs as Christians because the vaccines "were tested, developed or produced with fetal cell lines derived from procured abortions," according to court papers filed by the Thomas More Society, a legal group that advocates for religious liberty.

Cell lines derived from fetal tissue that was aborted—often decades ago—are routinely used in medical research, including the development and production of the Covid-19 vaccines available in the U.S. Fetal cell lines have also played a role in the development of vaccines against diseases including polio, chickenpox, hepatitis A and shingles.

A spokeswoman for New York Gov. Kathy Hochul, a Democrat, said she is doing everything in her power to increase vaccination rates and is considering all legal options to keep people safe.

The restraining order is the latest obstacle to the Biden administration's efforts to increase vaccination rates across the U.S., including a federal vaccine mandate that applies to some 50,000 health providers that receive Medicaid or Medicare funding.

New York's health department said in August that employees of hospitals and nursing homes must receive their first vaccine dose by Sept. 27, unless they receive a medical—but not religious—exemption. Some staff told employers that they would leave their jobs rather than take the shot.

Jill Montag, a spokeswoman for New York's health department, said the state's mandate was intended to protect everyone in healthcare facilities, including patients and staff.

Gerald Cayer, chief executive officer of the Lewis County Health System in New York's North Country region, said the only general hospital in the rural county would halt baby deliveries on Sept. 25 after 30 people resigned due to the mandate. Another 30 employees got vaccinated to stay at work, he said.

Staff at other medical facilities in the state have been more receptive to the vaccines. About 97% of the 11,500 employees on Albany Medical Center's main campus are vaccinated, said President Dennis McKenna. He and other hospital executives in the region instituted mandates before the state.

An association representing nursing-home operators in the state wrote a letter to the health department on Monday asking that workers be exempted from the vaccine mandate if they submit to weekly Covid-19 testing.

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